Zimbabwe

Stock Theft Prevention Act

Chapter 9:18

Legislation as at 31 December 2016

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Stock Theft Prevention Act (Chapter 9:18)
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Stock Theft Prevention Act

Chapter 9:18

Commenced on 1 May 1959

[This is the version of this document at 31 December 2016 and includes any amendments published up to 31 December 2017.]

[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to consolidate and amend the law relating to theft of stock and produce.

1. Short title

This Act may be cited as the Stock Theft Prevention Act *[Chapter 9:18]*.

[short title amended by section 282 of Act 23 of 2004]

2. Interpretation

In this Act—

"**produce**" means the whole or any part of any skin, hide, horn or egg of stock or any wool or mohair;

"**public sale**" *[definition repealed by section 282 of Act 23 of 2004]*

"**special jurisdiction**" means special jurisdiction on summary trial or on remittal of the case by the Prosecutor-General for trial or sentence;

"**stock**" means—

(a) any horse, mule, ass, bovine, sheep, goat, pig, poultry, pigeon or chinchilla; or

(b) any domesticated game; or

(c) the carcass or any portion of a carcass of any stock as defined in paragraph (a) or (b) which has been slaughtered.

3. Application of Act

(1) This Act shall not apply to—

(a) any carcass of stock or any portion of such a carcass or to any produce which had been cooked or processed at the time it is alleged to have been stolen; or

(b) the carcass or any portion of the carcass of an animal which, at the time of slaughter, was not in the lawful possession of the person from whom such carcass or portion is alleged to have been stolen; or

(c) the theft of any produce from a person other than the owner or person having the lawful custody of the stock from which such produce is derived or obtained.

(2) Subject to subsection (1), this Act shall apply in every case where a person is indicted, summoned or charged in respect of—

(a) the theft of stock or produce; or

(b) receiving any stolen stock or produce, knowing such stock or produce to have been stolen; or

(c) an attempt, conspiracy or incitement to commit an offence referred to in paragraph (a) or (b); or

(d) his being an accessory after the fact to an offence referred to in paragraph (a), (b) or (c);

notwithstanding that this Act is not referred to in the indictment, summons or charge concerned.

4. ***

[section repealed by section 282 of Act 23 of 2004]

5. ***

[section repealed by section 282 of Act 23 of 2004]

6. ***

[section repealed by section 282 of Act 23 of 2004]

7. Register to be kept by butchers and buyers of skins or hides

(1) In this section—

"Minister" means the Minister of Justice, Legal and Parliamentary Affairs or any other Minister to whom the President may from time to time assign the administration of this Act;

"stock" means any bovine, sheep or goat, and any reference in this section to "skin" or "hide" shall be construed as a reference to the skin or hide of a bovine, sheep, or goat.

(2) Subject to this section, every butcher and every buyer of skins or hides shall keep a register in which shall be recorded—

(a) the number of skins and hides of stock slaughtered by him; and

(b) the number of skins and hides obtained by him from any other person; and

(c) the names and addresses of all persons from whom he obtained the stock mentioned in paragraph (a) or the skins and hides mentioned in paragraph (b); and

(d) particulars of the colour, brands and markings of or on every skin and hide mentioned in this subsection; and

(e) such other particulars as the Minister may, by notice in a statutory instrument, prescribe.

(3) The register to be kept in terms of subsection (2) shall be kept in such form as the Minister may, by notice in a statutory instrument, prescribe.

(4) Every butcher and every buyer of skins or hides shall at all reasonable times permit any police officer or owner of stock to inspect the register kept in terms of subsection (2).

(5) Any butcher or buyer of skins or hides who—

(a) fails to keep a register in accordance with subsection (2); or

(b) refuses to permit a police officer or owner of stock to inspect a register kept in terms of subsection (2) or hinders or obstructs any such inspection; or

(c) makes a false entry in a register kept in terms of subsection (2), knowing such entry to be false;

shall be guilty of an offence.

(6) The Minister may, by notice in writing, exempt from the operation of subsections (2) and (4) any butcher or buyer of skins or hides.

(7) Any person who contravenes this section shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22/2001.]

8. ***

[section repealed by section 282 of Act 23 of 2004]

9. ***

[section repealed by section 29 of Act 9 of 2006]

10. Compensatory fine

(1) In any case in which a person is convicted of any contravention of subsection (2) of section 114 of the Criminal Law Code, the court may impose a fine upon the person convicted by way of compensation, in addition to any sentence which it may have imposed upon him, if—

(a) the person convicted is of or above the age of eighteen years and is unable to satisfy the court that he has not or is unable to obtain the means of satisfying any fine which may be imposed under this section; and

(b) the court is satisfied that the stock or produce which forms the subject-matter of the charge is the property of some other person; and

(c) the stock or produce has not been recovered or, if recovered, is worth less than its market value at the time of the theft; and

(d) the owner of such stock or produce does not apply under the Criminal Procedure and Evidence Act *[Chapter 9:07]* for compensation.

[subsection amended by section 3 of Act 6 of 2004 and by section 282 of Act 23 of 2004]

(2) The fine imposed in terms of subsection (1) shall not exceed—

(a) where the stock or produce has not been recovered, an amount equal to the market value of such stock or produce at the time of the theft;

(b) where the stock or produce has been recovered, an amount equal to the difference between the market value thereof at the time of the theft and the value of such stock or produce when it was recovered;

less, in either case, the amount of any compensation which may have been paid to the owner by or on behalf of the person convicted.

(3) A fine imposed in terms of this section may be recovered in the manner provided by section 348 of the Criminal Procedure and Evidence Act *[Chapter 9:07]*, and any amount so recovered shall be paid to the owner of the stolen stock or produce, subject to the owner giving security *de restituendo* in case the judgment of the court is reversed on appeal or review.

(4) If the court imposes a fine in terms of this section it shall, at the same time, sentence the person convicted to a term of imprisonment not exceeding twelve months in default of payment thereof or recovery thereof in terms of subsection (3).

(5) If some other sentence of imprisonment for the offence has been imposed upon the person convicted, then any sentence of imprisonment imposed in terms of subsection (4) shall be served after the expiration of such other sentence of imprisonment.

(6) In addition to the special jurisdiction conferred in terms of section nine, a magistrate shall have special jurisdiction to impose a fine and sentence of imprisonment in terms of this section.

11. ***

[section repealed by section 282 of Act 23 of 2004]

12. ***

[section repealed by section 282 of Act 23 of 2004]